

10.	YEAGER VS. CITY OF DANA POINT 2025-01526078	DEMURRER TO FIRST AMENDED COMPLAINT Defendant County of Orange’s Demurrer to First Amended Complaint (FAC) is SUSTAINED with leave to amend. Defendant demurs to Plaintiff’s causes of action for (1) negligence of public employees and (2) dangerous condition of public property, which arise from a trip and fall incident on 1/12/25 on a public pedestrian/bike path adjacent to State Route 1 in Dana Point. (FAC, ¶¶ 1-4.) Plaintiff has not filed an opposition to the demurrer as of 9/8/26. The County demurs on the grounds of trail immunity under Government Code section 831.4, which provides, “A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of: (a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways. (b) Any trail used for the above purposes. (c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads.” Here, Plaintiff alleges the incident occurred on the “public sidewalk and asphalt bicycle trail adjacent to Pacific Coast Highway...” (FAC, ¶ 2.) “The SUBJECT INCIDENT occurred on the asphalt bicycle trail portion of the SUBJECT PREMISES—i.e., within the area of the 10-foot wide bicycle trail easement retained by Defendant COUNTY OF ORANGE—and not on the PCC sidewalk that was relinquished to the City of Dana Point. (¶ 9.) Exhibit A to the FAC reflects that the trail is an asphalt bicycle trail maintained by the County. The County asserts that the subject path falls within the definition of a “trail” under section 831.4(b), which is used for purposes including those set out under section 831.4(a). Plaintiff has not opposed the demurrer. The County has shown the subject bicycle
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		path falls under section 831.4. Therefore, the demurrer is sustained with leave to amend.
11.	GOVEA VS. CITY OF FULLERTON 2023-01360733	DEMURRER TO SECOND AMENDED CROSS-COMPLAINT Cross-defendant United Specialty Insurance Company's (USIC) demurrer to Defendant/cross-complainant City of Fullerton's (City) Second Amended Cross-Complaint is SUSTAINED without leave to amend. USIC demurs to the first, third, fourth, fifth, sixth, seventh, eighth, ninth, and tenth causes of action on the following grounds: (1) Plaintiff's alleged injury occurred outside the policy period and (2) the City has no standing to pursue a claim against USIC. <u>The Parties' Non-Compliance with California Rules of Court, Rule 3.1113, Subdivision (d)</u> "Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages" and "no reply or closing memorandum may exceed 10 pages" not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service. (Cal. Rules of Court, rule 3.1113, subd. (d).) The City's opposition is 19 pages, and Plaintiff's reply is 11 pages in violation of rule 3.1113. The Court need not, and indeed does not, consider the portions of the City's opposition and Plaintiff's reply in excess of the page limit. The Court would note the City's opposition to the prior demurrer to the first amended cross-complaint was also over the limit at 17 pages, the Court considered the opposition. In any event, 19 pages is significantly over the page limit. <u>City's Request for Judicial Notice</u> The City requests judicial notice of its Second Amended Cross-Complaint and exhibits filed with this Court on 2/17/26. A court may take judicial notice of its own records. (Evid. Code, § 452, subd. (d).) While "[a] court may take judicial notice of the <i>existence</i> of each document a court file, [it] can only take judicial notice of the <i>truth</i> of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)